



CHAPTER lxix.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Burnham Gas Dinnington and District Gas Highbridge Gas and Pinner Gas.

[3rd August 1910.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas Orders Confirmation (No. 2) Act 1910. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation
of Orders in
schedule.

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SCHEDULE.

LIST OF ORDERS.

BURNHAM (SOMERSET) GAS.—Order authorising the maintenance and continuance of existing gasworks and works connected therewith and the manufacture and supply of gas in the parish and urban district of Burnham and parts of the parishes of Burnham Without Brent Knoll and Berrow all in the county of Somerset.

DINNINGTON AND DISTRICT GAS.—Order empowering the Dinnington and District Gas Company Limited to maintain and continue gasworks and to manufacture and supply gas in the parishes or townships of Dinnington North and South Anston Saint John's with Throapham Brampton-en-le-Morthen Hooton Levett and Laughton-en-le-Morthen in the West Riding of the county of York and for other purposes.

HIGHBRIDGE GAS.—Order authorising the maintenance and continuance of existing gasworks and works connected therewith and the manufacture and supply of gas in the urban district of Highbridge and parts of the parishes of Burnham Without and Huntspill all in the county of Somerset.

PINNER GAS.—Order empowering the Pinner Gas Company Limited to raise additional capital for the purposes of their gas undertaking.

BURNHAM (SOMERSET) GAS.

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Order authorising the maintenance and continuance of existing gasworks and works connected therewith and the manufacture and supply of gas in the parish and urban district of Burnham and parts of the parishes of Burnham Without Brent Knoll and Berrow all in the county of Somerset.

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Preliminary.

1. This Order may be cited as the Burnham (Somerset) Gas Order 1910. Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commence-
ment of
Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 (except sections 31 to 34) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except so far as the same are expressly varied by or are inconsistent with the provisions hereof and the said provisions of the Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order: Incorporation of Acts.

Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section and also that section 35 of such Act shall be read and construed as if the words from "in case the whole" down to the words "have been paid" were omitted therefrom and as though the expression "the prescribed rate" included the authorised rates as defined by this Order together with any sum which under the provisions of this Order may lawfully be carried to the special purposes fund.

4. In this Order the several words terms and expressions to which by any Act in whole or in part incorporated with this Order Interpreta-
tion.

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and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking by this Order authorised (including the gasworks and works connected therewith by this Order authorised to be continued and maintained) and the expression "the authorised rates" means the rate of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order.

Limits of
Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the parish and urban district of Burnham and so much of the parishes of Berrow Brent Knoll and Burnham Without in the county of Somerset as lies to the west of an imaginary line drawn from a point where the boundary between the parishes of Brean and Berrow commences on the seashore thence following that boundary to its southernmost point thence in a straight line to the northernmost point of North Lane thence in a south-easterly direction along and including North Lane to Ford Common thence across Ford Common in a straight line to Green Lane thence along and including Green Lane to the parish boundary thence in a southerly direction along that boundary to Berrow Lane thence in an easterly direction along and including Berrow Lane to the Great Western Railway thence in a southerly direction along and including that railway to the parish boundary between the parishes of Burnham Without and Brent Knoll thence in a south-easterly direction along such boundary to the highway leading from Bristol to Bridgwater thence in a south-westerly direction along but not including that highway to the south side of Edithmead Lane and thence in a westerly direction in a straight line touching the northernmost part of Board's Lane to the boundary of the urban district of Burnham.

Undertakers.

Undertakers.

6. The Burnham Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

Capital.

7. The share capital of the Undertakers shall not exceed twelve thousand five hundred and twenty-five pounds consisting of the ordinary share capital already raised by the Undertakers of six thousand and twenty-five pounds (hereinafter called "the original

capital") and of additional capital (in this Order called "the additional capital") to be issued subject to the provisions of this Order not exceeding six thousand five hundred pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for the purposes of the undertaking further additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

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8.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

Additional
capital to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply and to the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares or stock of the Undertakers in manner prescribed by a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers

A.D. 1910. in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

Application
of premium
arising on
issue of
shares.

9. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of
dividend on
capital.

10. Except as by this Order otherwise provided the Undertakers shall not in any year declare or make out of their profits any larger dividends than ten pounds in respect of every one hundred pounds of the original capital and seven pounds in respect of every one hundred pounds actually paid up of the additional capital (which are in this Order referred to as "the standard rates of dividend").

Dividends on
different
classes of
ordinary
shares to be
paid propor-
tionately.

11. In case in any year or in any half-year when a half-yearly dividend is declared the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the authorised rates on each class of ordinary shares in the original and additional capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Power to
create a
special pur-
poses fund.

12.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

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(a) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented ;

(b) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

13. If the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year Provided that the sum so carried forward shall not in any case exceed the amount required to pay one year's dividend at the authorised rates.

Application
of excess of
profits over
authorised
rates of
dividend.

14. Where in any year the dividend of the Undertakers on the ordinary share capital of the Undertakers shall exceed the standard rates by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividends the Undertakers may in such year set apart such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the commencement of this Order may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any year in which the clear profits of the

Power to
create a
reserve fund
and applica-
tion thereof.

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Limit of
borrowing
powers.

15. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Lands.

Power to
purchase
lands by
agreement.

16. The Undertakers may for the purposes of the undertaking purchase take on lease or acquire (by agreement but not otherwise) and hold in addition to the lands described in the schedule to this Order annexed any lands which they may require Provided that they shall not at any time hold for such purposes more than five acres of land in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedule.

Maintenance and Continuance of Gasworks Manufacture and Sale of Gas Coke and Residual Products.

Power to
continue
existing gas-
works on
lands de-
scribed in
schedule and
to make and
sell gas &c.

17. The Undertakers may on the lands described in the schedule to this Order annexed so long as they are possessed of the same maintain and continue and alter enlarge improve or discontinue their existing gasworks and works connected therewith and may construct erect make and maintain alter enlarge improve or discontinue additional gasworks retorts retort-houses gasholders receivers purifiers meters apparatus and works for the manufacture distribution storage conversion and sale of gas and of coke and other residual products obtained in the manufacture of gas and matters producible from or used in such manufacture and they may subject to the provisions of this Order make and store gas on such lands or any part thereof and supply and sell the same within the limits of supply and may on the same lands or any part thereof manufacture convert and store coke asphaltum pitch coal-tar ammoniacal liquor oil and all such other residual products as aforesaid and may sell and dispose of the same at their works and elsewhere

and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking.

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18. The following provisions shall apply and have effect for the protection of the Burnham Urban District Council (in this section referred to as "the council") :—

For pro-
tection of
Burnham
Urban Dis-
trict Council.

(1) The notice required to be given by section 8 of the Gasworks Clauses Act 1847 and the plan to be approved under section 9 of the same Act before breaking up any streets for the purpose of laying pipes or maintaining altering repairing or removing the same shall with respect to any streets or roads under the control or management of the council and with respect to any mains pipes or other works which the Undertakers may lay down or execute under or over any tramroad or any works mains or pipes of the council be given to and approved by the engineer or surveyor of the council and the work referred to in such notice and plan shall except in cases of emergency be executed maintained altered and repaired or removed to the reasonable satisfaction of such engineer or surveyor :

(2) Section 10 of the Gasworks Clauses Act 1847 is hereby varied in so far that the Undertakers instead of reinstating and making good the road or pavement opened or broken up shall after they have filled in the ground forthwith give notice in writing to the clerk or surveyor of the council and the council shall thereupon by their own agents or workmen reinstate and make good such road or pavement and the Undertakers shall pay to the council the reasonable cost thereof and of keeping in good repair the said road or pavement so broken up and reinstated as aforesaid for twelve months after reinstating or making good the same :

(3) The council shall not except in the case of negligence be under any liability to the Undertakers for any damage done to any of the property of the Undertakers (at any time laid or to be laid) caused by or resulting from the execution by the council or any person on their behalf of any reasonable work of repair or maintenance of any road within the limits of supply or the reasonable use by or on behalf of the council of any steam roller or other engine :

(4) Nothing in this Order contained shall interfere with the right of the council to widen alter the level of or deviate alter or improve in any manner they think fit any road in or along which any mains pipes or works of the Undertakers shall have been laid or to alter or improve the position of their

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present water mains pipes or sewers or lay new water mains pipes or sewers in or along any such road and the Undertakers shall forthwith on receiving notice in writing from the clerk or surveyor of the council so to do alter the position of any such mains pipes or works in such manner and to such extent as may be prescribed by such notice and the expenses of any such alteration shall be paid to the Undertakers by the council :

- (5) Any difference between the Undertakers and the council arising out of any matters provided for by this section shall be settled by an arbitrator to be agreed on between the Undertakers and the council and failing agreement to be appointed by the Board of Trade on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For pro-
tection of
Somerset-
shire Drain-
age Commis-
sioners.

19. For the protection of the Somersetshire Drainage Commissioners (herein-after referred to as "the commissioners") the following provisions shall apply:—

- (1) Where any works done under the authority of this Order will interfere with the banks or beds of the rivers Parrett or Brue or any rhine watercourse bridge culvert or other work under the jurisdiction of the commissioners the Undertakers shall not commence such work until they have given to the commissioners fourteen days' notice in writing of their intention to commence the same (except in cases of emergency arising from defects in any of the pipes or other works and then so soon as is possible after the beginning of the work or the necessity for the same shall have arisen) by leaving such notice at the office of the clerk to the commissioners with plans sections and other necessary particulars of the said works and the commissioners have signified their approval of the same or on their failure so to do within five weeks after the service of the said notice until the said plans and sections have been approved of by an arbitrator to be appointed as herein-after provided and all such works shall be executed by the Undertakers according to such approved plans sections and other particulars :

- (2) Any question which may arise between the Undertakers and the commissioners shall be referred to and determined by an arbitrator to be agreed upon between the Undertakers and the commissioners or failing agreement to be appointed by the Board of Trade.

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20. Nothing in this Order shall in any way affect or prejudice any of the powers rights or jurisdictions of the Bridgewater Corporation as the port and navigation authority within the limits of the jurisdiction of the said corporation as such authority.

For pro-
tection of
Bridgewater
Corporation.

21. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") the following provisions shall apply:—

For pro-
tection of
Great
Western
Railway
Company.

(A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Order upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in manner herein-after provided Provided that if such principal engineer shall not signify his approval or disapproval of any plans or proposals so submitted to him within twenty-eight days after the same are delivered to him or shall refuse or neglect to superintend the work or in cases of emergency arising from defects in any of the pipes or other works the Undertakers may proceed with the same without the approval of plans as aforesaid or without the superintendence of the said engineer:

(B) All such works shall be done by and at the expense of the Undertakers except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Undertakers but so nevertheless

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that any mains or pipes so laid by the Great Western Company shall be laid under the superintendence and to the reasonable satisfaction of the Undertakers' engineer:

- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon:
- (d) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Undertakers shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:
- (E) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Undertakers may have been constructed or laid the Great Western Company may on giving to the Undertakers fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Undertakers across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be done subject to the reasonable satisfaction of the engineer of the Undertakers and without unduly interfering with the supply of gas by the Undertakers:
- (F) Any dispute or difference which may arise between the Great Western Company and the Undertakers with reference to the provisions of this section or in any way arising

thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Undertakers or either of them and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

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22. For the protection of the London and South Western Railway Company and the Midland Railway Company as lessees of the Somerset and Dorset Railway (herein-after referred to as "the lessee companies") the following provisions shall unless otherwise agreed between the lessee companies and the Undertakers apply and have effect:—

For pro-
tection of
London and
South West-
ern and
Midland
Railway
Companies.

- (A) In laying down repairing or removing any gas mains or pipes or executing any other works in the exercise of the powers relative to the supply of gas contained in this Order upon across over under or in any way affecting the Somerset and Dorset Railway or any bridge over or under such railway or any approaches to any such bridge maintained by or within the lessee companies' boundary (herein-after called "the railway works") the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the lessee companies and (except in cases of emergency arising from defects in any of the pipes or other works) according to such plans sections and specifications and at such times as shall be previously submitted to and as shall be reasonably approved in writing by him or in the event of disapproval then in such manner as shall be determined by arbitration in manner herein-after provided and all such works shall be executed by and at the expense in all things of the Undertakers and so as to cause as little injury as may be to the railway works and the Undertakers shall within the lessee companies' boundary so execute any works as having regard to the existing level of the roadway shall interfere with or impede as little as possible any improvement or widening of such railway or bridge or the introduction of side openings to such bridge Provided that if the said engineer does not express his approval or disapproval of the said plans sections and specifications within twenty-one days after the same have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operations the Undertakers may execute the works without his superintendence Provided also that where there is

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not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the lessee companies may require such mains or pipes to be carried outside the structure of any such bridge and shall afford all reasonable facilities for the purpose subject to the conditions herein-before contained so far as the same may be applicable thereto:

- (B) The Undertakers shall (except in cases of emergency arising from defects in any of the pipes or other works) give fourteen days' notice in writing to the lessee companies before commencing any works affecting the railway works or within ten feet of the lessee companies' boundary :
- (c) If any injury or damage to the railway works or property of the lessee companies or any interruption to the lessee companies' traffic shall be in any way occasioned by the construction maintenance or user of the works of the Undertakers or by their contractors agents or workmen the Undertakers shall forthwith make full compensation to the lessee companies in respect thereof and the amount of such compensation shall in failure of agreement be determined by arbitration in manner herein-after provided :
- (d) All gas mains or pipes and other works of the Undertakers upon across over under or in any way affecting the railway works shall be at all times maintained in good repair by the Undertakers and in default of their being so maintained the lessee companies may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Undertakers require the Undertakers to forthwith put the same into good repair and if the Undertakers for fourteen days after the receipt of such notice refuse or neglect to proceed with the repair of the same or do not dispute the necessity thereof the lessee companies may without further notice to the Undertakers repair the same and all expenses reasonably incurred by them in or about such repair shall be repaid to them by the Undertakers Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such gas main pipe or other work as aforesaid being in want of repair the lessee companies may execute such repairs as may be immediately necessary Provided also that the lessee companies shall as soon as possible give notice to the Undertakers of their intention to commence the same and any reasonable expenses to which the lessee companies

may be put by reason of any such repairs shall be repaid to them by the Undertakers the amount of such expenses if disputed to be settled by arbitration as herein-after provided : A.D. 1910.
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(E) If the lessee companies at any time or times hereafter require to construct any additional or other works upon their lands or railway or to widen or alter the Somerset and Dorset Railway or to widen lengthen strengthen reconstruct alter repair lift or support any bridge over or under such railway or the approaches to such bridge the Undertakers shall afford to the lessee companies all reasonable and proper facilities for the purpose and the Undertakers shall pay to the lessee companies any additional expense which the lessee companies may incur in effecting such widening lengthening strengthening reconstructing altering repairing lifting or supporting or in the maintenance of any bridge approach or other work of the lessee companies by reason of the existence or user of the mains pipes or other works constructed under the powers of this Order :

(F) The Undertakers shall bear and on demand pay to the lessee companies all reasonable costs of the superintendence by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the railway works with reference to and during such construction and repairs so far as such costs may in case of difference be determined by the arbitrator to have been necessary :

(G) Any difference which may arise between the lessee companies and the Undertakers touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

23. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works or to the facilities to be afforded for the same such difference shall unless otherwise provided by this Order be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party. Differences with road authority or railway or other company.

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(Somerset).Quality of
gas.*Quality of Gas.*

24. The prescribed number of candles shall be not less than fourteen.

*Testing for Quality.*Testing for
quality.

25.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing-place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within six months from the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

*Pressure of Gas.*Pressure of
gas.

26.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Undertakers shall afford to the examiner all reasonable facilities for making the test.

*Testing-place.*Testing-
place.

27. For the purposes of the Gasworks Clauses Act 1871 the testing-place shall be a testing-place provided by the Undertakers at the gasworks within six months from the commencement of this Order.

Price of Gas.

A.D. 1910.

28. The standard price to be charged by the Undertakers for gas supplied by them to private consumers by ordinary meters shall be three shillings and ninepence per thousand cubic feet. Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary share capital as follows:—

Burnham
(Somerset).

Price of gas
with sliding
scale as to
dividend.

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

29.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

Charge for
gas supplied
by means of
prepayment
meters.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

A.D. 1910.

Burnham
(*Somerset*).

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connexion with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Miscellaneous.

Power to
supply gas
fittings
Fittings not
to be subject
to distress.

30.—(1) The Undertakers may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or rents and charges and make such terms and conditions as may be agreed.

(2) Any fittings now out on hire or let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

Engines &c.
though fixed
to premises
to remain
property of
Undertakers.

31.—(1) Subject as herein-after provided all engines motors fittings apparatus and appliances of the Undertakers now out on hire or let by the Undertakers on hire under the provisions of this Order shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Undertakers. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such engines motors fittings apparatus and appliances are or shall be fixed.

(2) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such engines motors fittings apparatus and appliances as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or

a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof. A.D. 1910.
Burnham
(*Somerset*).

32. The Undertakers may but only with the consent in writing of the owner of the soil of such street or road on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply. Power to lay pipes in streets not dedicated to public use.

33. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture storage supply utilisation or distribution of gas or the conversion manufacture or utilisation of any product obtainable in or arising from such manufacture or from the materials used therein. Power to take licences for use of patents.

34. The Undertakers may contract with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the limits of supply for the supply of gas in bulk to them respectively upon such terms and conditions and for such periods not exceeding in any case seven years from the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay down any mains or interfere with any street beyond the limits of supply. Power to contract for sale of gas in bulk.

35. No penalty shall be incurred by the Undertakers for neglect or refusal to give a supply of gas in accordance with the provisions of this Order to any company body or person who uses or is in the habit of using machinery or apparatus for making and utilising suction gas if and so long as in the opinion of the Undertakers the giving of a supply by them to such company body or person would interfere with or jeopardise the supply of gas by the Undertakers for public and private lighting and to consumers not using such machinery or apparatus as aforesaid. As to supply to users of suction gas plant.

36. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to construction and placing of pipes &c. between mains and meters.

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the

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Burnham
(*Somerset*).

consumer between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers. Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Anti-fluctua-
tors for gas
engines.

37. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may

cease to supply him with gas The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

A.D. 1910.

Burnham
(*Somerset*).

38. Twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur Provided that notice of the provisions of this section shall be endorsed upon every demand note for gas rent payable to the Undertakers.

Gas consumers to give notice to Undertakers before removing.

39. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice of discontinuance.

40. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Undertakers.

Period of error in defective meters.

41. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse to supply persons in debt for other property.

42. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

Power to erect &c. cottages for officers and servants.

43. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in which it is

Exemption from penalties in certain cases.

A.D. 1910. proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Burnham
(*Somerset*).

Undertakers
to pay
interest on
deposits.

44. Where any money is deposited by any person by way of security with the Undertakers for the payment by them of any moneys which may become due to them from such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

8 Vict. c. 16
s. 140 incor-
porated.

45. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order Provided that for the purpose of such incorporation the expression "the Company" in the said section shall be construed to mean the Undertakers.

Costs of
Order.

46. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULE.

GAS LANDS.

A piece or parcel of land belonging or reputed to belong to and in the occupation of the Undertakers and upon which their existing gas-works are erected situate in the parish and urban district of Burnham in the county of Somerset containing 2a. 0r. 28p. or thereabouts bounded on the south and east by lands and premises belonging or reputed to belong to Isaac Widgery William Walter Mear Samuel Charles Mear and Frederick James Thatcher on the north by lands and premises belonging or reputed to belong to Holt Brothers Limited Frederick James Keats and Edmund Comer Board Benjamin Comer Board and Martha Agnes Gertrude Board on the west by lands and premises belonging or reputed to belong to the said Holt Brothers Limited and the highway known as Oxford Street Burnham aforesaid.

DINNINGTON AND DISTRICT GAS.

A.D. 1910.

Order empowering the Dinnington and District Gas Company Limited to maintain and continue gasworks and to manufacture and supply gas in the parishes or townships of Dinnington North and South Anston Saint John's with Throapham Brampton-en-le-Morthen Hooton Levett and Laughton-en-le-Morthen in the West Riding of the county of York and for other purposes.

Dinnington and District.

1. This Order may be cited as the Dinnington and District Gas Order 1910. Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order) and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order: Incorporation of Acts.

Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section and also that section 35 of such Act shall be read and construed as if the words from "in case the whole" down to the words "have been paid" were omitted therefrom and as though the expression "the prescribed rate" included the authorised rates as defined by this Order together with any sum which under the provisions of this Order may lawfully be carried to the special purposes fund.

4. In this Order the expression "the authorised rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions Interpretation.

A.D. 1910.

*Dinnington
and District.*

of this Order and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the gas-works and works connected therewith by this Order authorised to be maintained and continued.

Limits of
Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the parishes or townships of Dinnington North and South Anston Saint John's with Throapham Brampton-en-le-Morthen Hooton Levett and Laughton-en-le-Morthen in the West Riding of the county of York.

Undertakers.

Undertakers.

6. The Dinnington and District Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

Capital.

7. The share capital of the Undertakers for the purposes of the undertaking shall not exceed thirty thousand pounds consisting of the ordinary share capital already raised by the Undertakers of twelve thousand pounds (in this Order referred to as "the original capital") and of additional share capital (in this Order referred to as "the additional capital") not exceeding eighteen thousand pounds including any premium which may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for such purposes further additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New shares
or stock to
be sold by
auction or
tender.

8.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day

of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

A.D. 1910.

*Dinnington
and District.*

(B) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary or preference shares or stock of the Undertakers in manner prescribed by a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

A.D. 1910.

*Dinnington
and District.*

Application
of premium
arising on
issue of
shares or
stock.

Limits of
dividend on
capital.

Dividends
on different
classes of
shares or
stock to be
paid propor-
tionately.

Limit of
borrowing
powers.

Power to
purchase
additional
land.

9. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

10. Except as in this Order otherwise provided the profits of the Undertakers to be divided among the shareholders in any year shall not exceed the following rates (which are in this Order referred to as "the standard rates of dividend") that is to say on the original capital the rate of ten pounds in respect of every one hundred pounds of such capital and on the additional capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

11. In case in any year or in any half-year if the Undertakers declare a dividend half-yearly the funds of the Undertakers applicable to dividend shall be insufficient to pay the authorised rates on each class of ordinary stock or shares in the original capital and the additional capital a proportionate reduction shall be made in the dividends payable on each class.

12. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Purchase of Lands.

13. The Undertakers may for the purposes of the undertaking purchase or take on lease (by agreement but not otherwise) and hold in addition to the lands described in the schedule to this Order annexed any lands which they may require. Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedule.

*Maintenance and Continuance of Gasworks Manufacture and
Sale of Gas Coke and Residual Products.*

A.D. 1910.
*Dinnington
and District.*

14. The Undertakers on the lands shown on the map deposited for the purposes of this Order and described in the schedule to this Order annexed while they are possessed of the same may maintain and continue and alter enlarge improve re-erect renew or discontinue their existing gasworks and works connected therewith for the manufacture utilisation distribution and storage of gas and of coal tar coke and ammoniacal liquor and they may subject to the provisions of this Order manufacture and store gas on such lands and supply and sell the same within the limits of supply and may on the same lands store coal tar coke pitch and asphaltum and manufacture and store ammoniacal liquor and sulphate of ammonia and may sell and dispose of the same at their works and elsewhere and they may also deal in and sell lime at their works and elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking.

Undertakers
may main-
tain and
continue
gasworks
on lands
described in
schedule and
may make
and sell gas
&c.

15.—(1) The Undertakers may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such terms and conditions as may be agreed upon and such remuneration rents and charges shall be recoverable in the same manner as rents or sums due to the Undertakers for gas.

Power to
supply gas
fittings
Fittings not
to be subject
to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

16. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture supply

Power to
take licences
for patents
&c.

A.D. 1910. or distribution of gas or the conversion manufacture or utilisation of
Dinnington any product obtainable in or arising from such manufacture or from
and District. the materials used therein.

Undertakers
 may contract
 with local
 authority &c.
 for supply
 in bulk.

17. The Undertakers may contract with any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond their limits of supply.

For pro-
 tection of
 West Riding
 County
 Council.

18. In executing the works and exercising the powers by this Order authorised so far as they affect main roads and county bridges of the West Riding of the county of York the following provisions for the protection of the county council of the said West Riding (in this section called "the county council") shall have effect unless otherwise agreed on in writing between the county council and the Undertakers (that is to say):—

(1) All mains pipes or works not being service pipes or renewals of existing mains pipes or works to be laid in or along any main road or above or alongside of any county or main road bridge or the approaches thereto shall be constructed and laid in such position having regard to all the circumstances as the county council shall by writing under the hand of their surveyor reasonably direct and in such manner and according to such plan as is herein-after mentioned and the gradient of such bridge and of the respective approaches thereto shall not be altered:

(2) All works to be constructed or laid in or along or across or in any way affecting any main road or affecting or near to any county or main road bridge or any approach thereto shall be executed at the expense of the Undertakers under the superintendence if the same be given and to the reasonable satisfaction of the said surveyor and in accordance with plans sections and specifications to be submitted to and reasonably approved of by him in writing before the commencement of any such work (except in case of emergency when the Undertakers may proceed forthwith with the work after giving such notice as the circumstances admit) Provided that if the said surveyor shall not within twenty-one days after the same shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof:

(3) The works shall be so executed as not in any way to stop or unreasonably interfere with the traffic of any main road or county or main road bridge or of any approach thereto and all such works shall be proceeded with and completed with all possible despatch:

A.D. 1910:

*Dinnington
and District.*

(4) Nothing in this Order contained shall interfere with the right of the county council at any time or times to divert widen or improve any such main road or to remove alter widen or renew any such county or main road bridge or the approaches thereto in alongside or near to which any such mains pipes or works are carried without making any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of such diversion widening improvement removal alteration or renewal and in the event of any such main road or bridge or the approaches thereto being diverted widened or improved removed altered or renewed as aforesaid so as to involve interference with any main pipe or work of the Undertakers the Undertakers shall at their own expense after receiving notice in writing under the hand of the said surveyor remove or alter the position of such main pipe or work in such manner and to such extent as may be reasonably prescribed by such notice and shall where necessary replace the same to the reasonable satisfaction of the said surveyor Provided that before and during any such diversion widening improvement removal alteration or renewal as aforesaid the county council shall afford reasonable facilities for temporarily carrying such mains or pipes along the main road or across the stream so as not to interrupt the continuous supply of gas:

(5) Notwithstanding anything in this Order contained if any difference arise between the Undertakers and the county council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

19. In executing the works and exercising the powers by this Order authorised so far as they affect any road or bridge or the approaches to any bridge maintainable by the Rotherham Rural District Council the following provisions for the protection of the said

For pro-
tection of
Rotherham
Rural Dis-
trict Council.

A.D. 1910. Rotherham Rural District Council (in this section called "the rural council") shall have effect unless otherwise agreed on in writing between *Dinnington and District.* the rural council and the Undertakers (that is to say):—

- (1) All mains pipes or works not being service pipes or renewals of existing mains pipes or works to be laid in or along any such road or bridge or the approaches thereto shall be constructed and laid in such position having regard to all the circumstances as the rural council shall by writing under the hand of their surveyor reasonably direct:
- (2) All works to be constructed or laid in along or across or in any way affecting any such road or bridge or any approach thereto shall be executed at the expense of the Undertakers under the superintendence if the same be given and to the reasonable satisfaction of the said surveyor and in accordance with plans sections and specifications to be submitted to and reasonably approved of by him in writing before the commencement of any such work (except in case of emergency when the Undertakers may proceed forthwith with the work after giving such notice as the circumstances admit) Provided that if the said surveyor shall not within twenty-one days after the same shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof Before proceeding to execute any such works as aforesaid the Undertakers shall except in case of emergency give to the said surveyor in the case of works not being service pipes fourteen days' notice and in the case of service pipes three days' notice:
- (3) The works shall be so executed as not in any way to stop or unreasonably interfere with the traffic of any such road bridge or of any approach thereto and all such works shall be proceeded with and completed with all possible despatch:
- (4) Nothing in this Order contained shall interfere with the right of the rural council at any time or times to divert widen or improve any such road in alongside or near to which any such mains pipes or works are carried without making any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of such diversion widening improvement removal alteration or renewal and in the event of any such road or bridge or the approaches thereto being diverted widened or improved removed altered or renewed as aforesaid so as to involve interference with any main pipe or work of the Undertakers the Undertakers shall at their own expense after receiving

notice in writing under the hand of the said surveyor remove or alter the position of such main pipe or work in such manner and to such extent as may be reasonably prescribed by such notice and shall where necessary replace the same to the reasonable satisfaction of the said surveyor. Provided that before and during any such diversion widening improvement removal alteration or renewal as aforesaid the rural council shall afford reasonable facilities for temporarily carrying such mains or pipes along such road or across the stream so as not to interrupt the continuous supply of gas :

(5) Whenever the Undertakers shall have opened or broken up any such road in the exercise of any of their statutory powers they shall complete the work and fill in the ground to the reasonable satisfaction of the rural council or of their surveyor for the time being and the reinstatement and making good of the road shall include the application of a sufficient layer of surface metalling of the specification as that employed by the rural council for the particular road and shall include the use of a steam roller on the places where the road has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining the same to be done at the expense of the Undertakers and to the reasonable satisfaction of the rural council or of their surveyor for the time being :

(6) Notwithstanding anything in this Order contained if any difference arise between the Undertakers and the rural council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

20. The following provisions for the protection of the Great Central Railway Company the Great Central and Midland Joint Committee the Great Central Hull and Barnsley and Midland Committee and the South Yorkshire Joint Line Committee (all or either of whom as the case may be are in this section referred to as and included in the expression "the railway company") shall unless otherwise agreed in writing between the railway company and the Undertakers apply and have effect (that is to say) :—

(1) The execution of any works in the exercise by the Undertakers of the powers conferred upon them by this Order upon across or in any way affecting the railways and other

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and District.*

property of or any road repairable by the railway company (all or any part whereof as the case may be is in this section included in the expression "the property of the railway company") shall be done and completed with all despatch after the commencement thereof under the superintendence and to the reasonable satisfaction of the engineer of the railway company and only according to such plans and sections and in such manner as shall previously be reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner herein-after provided. Provided that if such engineer shall not approve or disapprove any plans and sections so submitted to him within fourteen days after the same are delivered to him or shall refuse or neglect to superintend the work the Undertakers may proceed without the approval of the plans and sections and without the superintendence of the said engineer:

(2) All such works shall be done by and at the expense of the Undertakers (except as in this section otherwise provided) who shall also at the like expense restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or level crossing of the railways of the railway company or the approaches thereto so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers. Provided always that should the railway company elect so to do where any mains pipes or other works require to be laid renewed or repaired under or across any level crossing of their railways they may themselves carry out such work at the costs charges and expenses of the Undertakers but so nevertheless that any mains or pipes so laid by the railway company shall only be laid under the superintendence and to the reasonable satisfaction of the engineer of the Undertakers:

(3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to the property of the railway company and so as to cause no interruption to the passage or conduct of the railway company's traffic and if any injury or interruption as aforesaid shall arise from or in any way be owing to the act or default or the works or operations of the Undertakers or to the leakage or failure of any such mains pipes or works in under or near to the property of the railway company the Undertakers

shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided : A.D. 1910.
*Dinnington
and District.*

- (4) The Undertakers shall bear and on demand pay to the railway company all reasonable costs of the superintendence by them of the construction or repair of any of the works of the Undertakers affecting the property of the railway company and in the case of any level crossing being broken up all reasonable costs of watching lighting signalling and protecting the property of the railway company with reference to and during such construction or repair but such superintendence by the railway company or their neglect to superintend shall not alter or affect any liability to which the Undertakers may be subject for any accident which may be occasioned by the works or operations or by the act or default of the Undertakers or of their contractors servants or workmen or any of them :
- (5) If at any time it is found necessary in order to enable the railway company to carry out any alterations or extensions of their railways or works to alter the position of the said mains pipes or works the Undertakers shall on receiving notice in writing from the railway company so to do at their own cost and to the reasonable satisfaction of the engineer of the railway company alter the position of the said mains pipes or works so far as may be necessary to enable the railway company to carry out such alterations or extensions of their railways or works and the provisions of this section shall apply to the said mains pipes or works in their altered position :
- (6) Any difference arising between the Undertakers and the railway company under this section shall be determined by an engineer or other fit person to be appointed failing agreement by the President of the Institution of Civil Engineers at the request of either party and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

21. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference unless the same be otherwise specially provided for by the provisions of this Order shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party. Differences
with road
authority
or railway
or other
company.

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*Price of Gas &c.**Dinnington
and District.*
Price of gas.

22. The standard price to be charged by the Undertakers for gas supplied by them shall be four shillings per thousand cubic feet and so in proportion for any less quantity supplied:

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary capital of the Undertakers as follows:—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five shillings on every hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate of dividend by five shillings on every hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Power to
create a
special pur-
poses fund.

23.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

(A) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented;
or

(B) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works. A.D. 1910.
Dinnington and District.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

24. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year: Application of excess of profits over authorised rates of dividend.

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rates.

25. Where in any year the dividends on the ordinary capital of the Undertakers shall exceed the standard rate by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividend the Undertakers may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Undertakers and any reserve or other fund of the Undertakers existing at the commencement of this Order may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers be insufficient to enable the Undertakers in such year to pay the dividend at the authorised rates on the ordinary capital of the Undertakers and save as in this Order otherwise provided no sum shall in any year be carried by the Undertakers to any reserve fund. Power to create a reserve fund.

A.D. 1910.

*Dinnington
and District.*Charge for
gas supplied
by means of
prepayment
meters.

26.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connexion with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Price of gas
for public
lighting.

27. The price to be charged by the Undertakers for gas supplied for public lighting within the limits of supply shall be such a price as may be determined in accordance with the provisions of the Gasworks Clauses Act 1871 not exceeding three shillings and sixpence per thousand cubic feet.

Quality and Testing of Gas.

Quality of
gas.

28. The prescribed number of candles shall be not less than fourteen.

Testing-
place.

29. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing-place shall be a testing-place which shall be provided by the Undertakers on the lands described in the schedule to this Order annexed within six months after the commencement of this Order.

Testing for
quality.

30.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing-place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

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—
*Dinnington
and District.*

(3) The Undertakers shall within six months after the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

31.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

Pressure.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Undertakers shall afford to the examiner all reasonable facilities for making the test.

32. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

*Saving as to
penalties.*

Miscellaneous.

33. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

*As to con-
struction and
placing of
pipes &c.
between
mains and
meters.*

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

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*Dinnington
and District.*

(2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :

(3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers :

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to lay
pipes in
streets not
dedicated to
public use.

34. The Undertakers may but only with the consent of the owner of the soil of such street or road upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking

up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

A.D. 1910.
Dinnington and District.

35. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctuators for gas engines.

36. At least twenty-four hours' notice in writing shall be given to the Undertakers by every consumer of gas before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for charges payable to the Undertakers.

Gas consumers to give notice to Undertakers before removing.

37. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice to discontinue supply of gas.

38. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse to supply persons in debt for other premises.

39. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the

Period of error in defective meters.

A.D. 1910. consumer by the Undertakers shall be paid by or to the Undertakers
Dinnington to or by the consumer as the case may be and shall be recoverable in
and District. like manner as gas charges are recoverable by the Undertakers.

Dwelling-
houses for
workmen.

40. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

Undertakers
to pay in-
terest on
money
deposited
as security
for gas
meter &c.

41. If any person is required by the Undertakers to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Undertakers shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

8 Vict. c. 16.
s. 140 incor-
porated.

42. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order. Provided that for the purpose of such incorporation the expression "the Company" in the said section shall be construed to mean the Undertakers.

Costs of
Order.

43. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULE.

GAS LANDS.

A piece of land situate in the parish or township of Dinnington in the West Riding of the County of York containing by admeasurement 3 acres 2 roods 23 perches or thereabouts and bounded on or towards the north-east by Eels Mire Dyke on or towards the east partly by Dinnington Lane and partly by lands belonging or reputed to belong to James Turner Joseph Lidster and William Michael Hargreaves respectively on or towards the south by land belonging or reputed to belong to James Turner and on or towards the west by land belonging or reputed to belong to the Reverend George Middleton Athorpe.

HIGHBRIDGE GAS.

A.D. 1910.

*Order authorising the maintenance and continuance of existing
gasworks and works connected therewith and the
manufacture and supply of gas in the urban
district of Highbridge and parts of the parishes of Burnham
Without and Huntspill all in the county of Somerset.* *Highbridge.*

Preliminary.

1. This Order may be cited as the Highbridge Gas Order 1910. *Short title.*

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." *Commence-
ment of
Order.*

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the Undertaking) of the Gasworks Clauses Act 1847 (except sections 31 to 34) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except so far as the same are expressly varied by or are inconsistent with the provisions hereof: *Incorpora-
tion of Acts.*

Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section. Provided also that for the purpose of such incorporation section 35 of the said Gasworks Clauses Act 1847 shall be read and construed as though the words from "in case the whole" down to the words "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the authorised rates of dividend as defined by this Order together with any sum which under the provisions of this Order might lawfully be carried to the special purposes fund.

The said provisions of the Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order.

4. In this Order the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the *Interpreta-
tion.*

A.D. 1910. construction of this Order or of any such Act for the purposes of this
Highbridge. Order the expression "the undertaking" shall mean the undertaking
 by this Order authorised (including the gasworks and works connected
 therewith by this Order authorised to be continued and maintained)
 and the expression "the authorised rates" means the rates of dividend
 authorised by this Order on the capital of the Undertakers for the
 purposes of the undertaking or such rates as reduced or increased in
 accordance with the provisions of this Order.

Limits of
 Order.

5. The limits within which the provisions of this Order shall be
 in force and have effect (in this Order referred to as "the limits of
 supply") shall be the parishes of Highbridge North and Highbridge
 South in the urban district of Highbridge and so much of the parishes
 of Burnham Without and Huntspill in the county of Somerset as lies
 within an imaginary line commencing at a point on the northern
 boundary of the urban district of Highbridge where the boundary
 between the parishes of Burnham and Burnham Without touches such
 boundary thence in a northerly direction along that boundary to a
 point on that boundary in a straight line with the northernmost point
 of Board's Lane thence from that point in a straight line to the south-
 east end of Edithmead Lane at its junction with the highway leading
 from Bristol to Bridgwater thence across that highway and continuing in
 a north-easterly direction along the eastern side thereof to Burnham Moor
 Lane thence along and including Burnham Moor Lane to Pitmoor or
 Pillmore Lane thence in a south-westerly direction in a straight line to
 a point where the boundaries of the parishes of Highbridge North and
 Burnham Without meet the boundary of the parish of Huntspill thence
 in a south-westerly direction in a straight line to the northern end of
 Newbridge Lane thence along and including Newbridge Lane to New
 Road across that road and continuing in a straight line to the eastern
 end of Withy Bridge over the Great Western Railway thence in a
 westerly direction in a straight line to a point on the boundary of the
 parish of Huntspill where Slow Way Drove joins Slow Way Lane
 thence in a northerly direction along and including Slow Way Lane
 and Cadwell's Drove to its junction with Cadwell's Lane and thence
 in a like direction in a straight line to the most westerly point of
 the urban district of Highbridge.

Undertakers.

Undertakers. 6. The Highbridge Gas Company Limited shall be the Under-
 takers for the purposes of this Order and are in this Order referred
 to as "the Undertakers."

Capital.

Capital. 7. The share capital of the Undertakers shall not exceed eleven
 thousand pounds consisting of the ordinary share capital already raised
 by the Undertakers of three thousand five hundred pounds (herein-after

called "the original capital") and of additional capital (in this Order called "the additional capital") to be issued subject to the provisions of this Order not exceeding seven thousand five hundred pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for the purposes of the undertaking further additional capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

A.D. 1910.

Highbridge.

8.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

Additional
capital to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the ordinary shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportion as

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Highbridge.

the directors of the Undertakers may think fit or to one or more of these classes of persons only provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this Order and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

Application
of premium
arising on
issue of
shares or
stock.

9. All money raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of
dividend on
capital.

10. Except as by this Order otherwise provided the Undertakers shall not in any year declare or make out of their profits any larger dividends than ten pounds in respect of every one hundred pounds of the original capital and seven pounds in respect of every one hundred pounds actually paid up of the additional capital (which are in this Order referred to as "the standard rates of dividend").

Dividends on
different
classes of
ordinary
shares or
stock to be
paid propor-
tionately.

11. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenue of the Undertakers applicable to dividend is insufficient to pay the full amount of the authorised rates on each class of ordinary shares or stock in the original capital and additional capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Power to
create a
special pur-
poses fund.

12.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being— A.D. 1910.
Highbridge.

(A) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented;

(B) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The money forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

13. If the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of such Undertaking for the next following year Provided that the fund standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rates. Application of excess of profits over authorised rates of dividend.

14. Where in any year the dividend of the Undertakers on the ordinary share capital of the Undertakers shall exceed the standard rates by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividends the Undertakers may in such year set apart such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the commencement of this Order may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any year in which the clear profits of the Power to create a reserve fund and application thereof.

A.D. 1910. Undertakers shall be insufficient to enable the Undertakers in such
Highbridge. year to pay the dividend at the authorised rates on the ordinary capital
of the Undertakers and save as by this Order specially provided no
sum shall in any year be carried by the Undertakers to any reserve
fund.

Limit of
borrowing
powers.

15. The amount of all moneys borrowed by the Undertakers and
secured by mortgage of the undertaking shall not at any time exceed
in the whole one-third of the amount of the capital of the Undertakers
at the time actually raised by the issue of shares or stock including
any premium that may be obtained on the sale of any shares or stock
under the provisions of this Order and no higher rate of interest than
five pounds per centum per annum shall be paid by the Undertakers
without the consent of the Board of Trade in respect of any moneys
borrowed by the Undertakers after the commencement of this Order
and secured as aforesaid.

Lands:

Power to
purchase
lands by
agreement.

16. The Undertakers may for the purposes of the undertaking
purchase take on lease or acquire (by agreement but not otherwise)
and hold in addition to the lands described in the schedule to this
Order annexed any lands which they may require Provided that
they shall not at any time hold for such purposes more than five
acres of land in addition to the lands described in the said schedule
and that they shall not create or permit a nuisance on any such
lands and that no lands shall be used by the Undertakers for the
purpose of manufacturing gas or residual products or of storing gas
except the lands described in the said schedule.

*Maintenance and Continuance of Gasworks. Manufacture and Sale of
Gas Coke and Residual Products.*

Power to
continue
existing gas-
works on
lands de-
scribed in
schedule and
to make and
sell gas &c.

17. The Undertakers may on the lands described in the schedule
to this Order annexed so long as they are possessed of the same
maintain and continue and alter enlarge improve or discontinue their
existing gasworks and works connected therewith and may construct
erect make and maintain alter enlarge improve or discontinue additional
gasworks retorts retort-houses gasholders receivers purifiers meters
apparatus and works for the manufacture distribution storage conversion
and sale of gas and of coke and other residual products obtained in
the manufacture of gas and matters producible from or used in such
manufacture and they may subject to the provisions of this Order
make and store gas on such lands or any part thereof and supply and
sell the same within the limits of supply and may on the same lands
or any part thereof manufacture convert and store coke asphaltum and
pitch coal-tar ammoniacal liquor oil and all such other residual products
as aforesaid and may sell and dispose of the same at their works and

elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking. A.D. 1910.
Highbridge.

18. For the protection of the Somersetshire Drainage Commissioners (in this section referred to as "the commissioners") the following provisions shall apply:— For pro-
tection of
Somerset-
shire Drain-
age Commis-
sioners.

- (1) Where any works done under the authority of this Order will interfere with the banks or beds of the rivers Parrett or Brue or any rhine watercourse bridge culvert or other work under the jurisdiction of the commissioners the Undertakers shall not commence such work until they have given to the commissioners fourteen days' notice in writing of their intention to commence the same (except in cases of emergency arising from defects in any of the pipes or other works and then so soon as possible after the beginning of the work or necessity for the same shall have arisen) by leaving such notice at the office of the clerk to the commissioners with plans sections and other necessary particulars of the said works and the commissioners have signified their approval of the same or on their failure so to do within five weeks after the service of the said notice until the said plans and sections have been approved by an arbitrator to be appointed as herein-after provided and all such works shall be executed by the Undertakers according to such approved plans sections and other particulars:

- (2) Any question which may arise between the Undertakers and the commissioners shall be referred to and determined by an arbitrator to be agreed upon between the Undertakers and the commissioners or failing agreement to be appointed by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

19. Nothing in this Order shall in any way affect or prejudice any of the powers rights or jurisdictions of the Bridgewater Corporation as the port and navigation authority within the limits of the jurisdiction of the said corporation as such authority. For pro-
tection of
Bridgewater
Corporation.

20. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") the following provisions shall apply:— For pro-
tection of
Great West-
ern Railway
Company.

- (A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Order upon across

A.D. 1910.

Highbridge.

under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in manner herein-after provided Provided that if such principal engineer shall not approve or disapprove any plans or proposals so submitted to him within twenty-eight days after the same are delivered or shall refuse or neglect to superintend the work or in cases of emergency arising from defects in any of the pipes or other works the Undertakers may proceed with the same without the approval of the plans as aforesaid or without the superintendence of the said engineer :

(B) All such works shall be done by and at the expense of the Undertakers except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Undertakers but so nevertheless that any mains or pipes so laid by the Great Western Company shall be laid under the superintendence and to the reasonable satisfaction of the Undertaker's engineer :

(c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon ;

(D) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Undertakers shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:

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Highbridge.

(E) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Undertakers may have been constructed or laid the Great Western Company may on giving to the Undertakers fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Undertakers across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be done subject to the reasonable satisfaction of the engineer of the Undertakers and without unduly interfering with the supply of gas by the Undertakers:

(F) Any dispute or difference which may arise between the Great Western Company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Undertakers or either of them and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

21. For the protection of the London and South Western Railway Company and the Midland Railway Company as lessees of the Somerset and Dorset Railway (herein-after referred to as "the lessee companies") the following provisions shall unless otherwise agreed

For protection of London and South Western and Midland Railway Companies.

A.D. 1910. between the lessee companies and the Undertakers apply and have
Highbridge. effect:—

(A) In laying down repairing or removing any gas mains or pipes or executing any other works in the exercise of the powers relative to the supply of gas contained in this Order upon across over under or in any way affecting the Somerset and Dorset Railway or any bridge over or under such railway or any approaches to any such bridge maintained by or within the lessee companies' boundary (herein-after called "the railway works") the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the lessee companies and (except in cases of emergency arising from defects in any of the pipes or other works) according to such plans sections and specifications and at such times as shall be previously submitted to and as shall be reasonably approved in writing by him or in the event of disapproval then in such manner as shall be determined by arbitration in manner herein-after provided and all such works shall be executed by and at the expense in all things of the Undertakers and so as to cause as little injury as may be to the railway works and the Undertakers shall within the lessee companies' boundary so execute any works as having regard to the existing level of the roadway shall interfere with as little as possible any improvement or widening of such railway or bridge or the introduction of side openings to such bridge Provided that if the said engineer does not express his approval or disapproval of the said plans sections and specifications within twenty-one days after the same have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operations the Undertakers may execute the works without his superintendence Provided also that where there is not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the lessee companies may require such mains or pipes to be carried outside the structure of any such bridge and shall afford all reasonable facilities for the purpose subject to the conditions herein-before contained so far as the same may be applicable thereto:

(B) The Undertakers shall (except in cases of emergency arising from defects in any of the pipes or other works) give fourteen days' notice in writing to the lessee companies before commencing any works affecting the railway works or within ten feet of the lessee companies' boundary:

- (c) If any injury or damage to the railway works or property of the lessee companies or any interruption to the lessee companies' traffic shall be in any way occasioned by the construction maintenance or user of the works of the Undertakers or by their contractors agents or workmen the Undertakers shall forthwith make full compensation to the lessee companies' in respect thereof and the amount of such compensation shall in failure of agreement be determined by arbitration in manner herein-after provided: A.D. 1910.
Highbridge.
- (d) All gas mains or pipes and other works of the Undertakers upon across over under or in any way affecting the railway works shall be at all times maintained in good repair by the Undertakers and in default of their being so maintained the lessee companies may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Undertakers require the Undertakers to forthwith put the same into good repair and if the Undertakers for fourteen days after the receipt of such notice refuse or neglect to proceed with the repair of the same or do not dispute the necessity thereof the lessee companies may without further notice to the Undertakers repair the same and all expenses reasonably incurred by them in or about such repair shall be repaid to them by the Undertakers Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such gas main pipe or other work as aforesaid being in want of repair the lessee companies may execute such repairs as may be immediately necessary Provided also that the lessee companies shall as soon as possible give notice to the Undertakers of their intention to commence the same and any reasonable expenses to which the lessee companies may be put by reason of any such repairs shall be repaid to them by the Undertakers the amount of such expenses if disputed to be settled by arbitration as herein-after provided: ○
- (e) If the lessee companies at any time or times hereafter require to construct any additional or other works upon their lands or railway or to widen or alter the Somerset and Dorset Railway or to widen lengthen strengthen reconstruct alter repair lift or support any bridge over or under such railway or the approaches to such bridge the Undertakers shall afford to the lessee companies all reasonable and proper facilities for the purpose and the Undertakers shall pay to the lessee companies any additional expense which the lessee companies may incur in effecting such widening lengthening

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Highbridge.

strengthening reconstructing altering repairing lifting or supporting or in the maintenance of any bridge approach or other work of the lessee companies by reason of the existence or user of the mains pipes or other works constructed under the powers of this Order :

(F) The Undertakers shall bear and on demand pay to the lessee companies all reasonable costs of the superintendence by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the railway works with reference to and during such construction and repairs so far as such costs may in case of difference be determined by the arbitrator to have been necessary :

(G) Any difference which may arise between the lessee companies and the Undertakers touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

For protec-
tion of High-
bridge Urban
District
Council.

22. In executing the works and exercising the powers by this Order authorised so far as they affect roads repairable by the Highbridge Urban District Council (in this section called "the council") the following provisions shall have effect unless otherwise agreed on in writing between the council and the Undertakers (that is to say):—

(1) The notice required to be given by section 8 of the Gasworks Clauses Act 1847 and the plan to be approved under section 9 of the same Act before breaking up any streets for the purpose of laying mains or pipes or maintaining altering repairing or removing the same shall with respect to any streets or roads under the control or management of the council and with respect to any mains pipes or other works which the Undertakers may lay down or execute under or over any tram-road or any works mains or pipes of the council be given to and approved by the engineer or surveyor of the council and the work referred to in such notice and plan shall except in cases of emergency be executed maintained altered and repaired or removed to the reasonable satisfaction of such engineer :

(2) Nothing in this Order contained shall interfere with the right of the council to widen alter the level of or deviate alter or improve in any manner they may think fit any road in or along which any mains pipes or works of the Undertakers shall have been laid and the Undertakers shall forthwith

on receiving notice in writing from the clerk or surveyor of the council so to do alter the position of any such mains pipes or works in such manner and to such extent as may be prescribed by such notice and the expenses of any such alteration shall be paid to the Undertakers by the council:

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Highbridge.

- (3) The council shall not except in case of their negligence be under any liability to the Undertakers for any damage done to any of the property of the Undertakers (at any time laid or to be laid) caused by or resulting from the execution by the council or any person on their behalf of any reasonable work of repair or maintenance of any road within the limits of supply or the reasonable use by or on behalf of the council of any steam roller or other engine not exceeding twelve tons in weight:
- (4) If in the exercise of the powers of this Order any road is broken up by the Undertakers or any culvert drain pipe or other property of the council is damaged by the Undertakers the Undertakers shall repair such road culvert drain pipe or other property to the reasonable satisfaction of the council and if the same is not so repaired the council may cause the necessary repairs to be done and may charge the reasonable costs thereof against the Undertakers and the same shall be a debt due from the Undertakers to the council:
- (5) If any difference arise between the Undertakers and the council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to any such reference to arbitration:
- (6) All the rights or obligations conferred or imposed by this section shall be in addition to and not in substitution for any rights or obligations conferred or imposed by such of the provisions of the Gasworks Clauses Acts 1847 and 1871 with respect to breaking up streets as are incorporated in this Order:
- (7) Nothing in this section contained shall extend to affect or apply to any existing mains or lines of pipes of the Undertakers except in cases of the renewal of any such mains or lines of pipes.

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*Highbridge.*For pro-
tection of
Bridgwater
Rural Dis-
trict Council.

23. In executing the works and exercising the powers by this Order authorised so far as they affect roads repairable by the Bridgwater Rural District Council (in this section called "the council") the following provisions shall have effect unless otherwise agreed on in writing between the council and the Undertakers (that is to say):—

- (1) All mains or lines of pipes to be laid in or along any road shall be constructed and laid at such depth and in such position at the side thereof or under the greensward or footpath as the council shall by writing under the hand of their surveyor reasonably direct and the Undertakers shall at their own expense reinstate any road drain goit or culvert which may be interfered with :
- (2) All mains or lines of pipes to be constructed or laid in along or across or in any way affecting any road shall be executed at the expense of the Undertakers to the reasonable satisfaction of the surveyor to the council and except in cases of emergency arising from defects in any of the pipes or other works in accordance with plans to be submitted to and approved of by him in writing before the commencement of any such work Provided that if he shall not within twenty-one days after the same shall have been submitted to him so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof :
- (3) All such works shall be executed so as not to unreasonably interfere with or entirely stop the traffic of any such road :
- (4) Nothing in this Order contained shall interfere with the right of the council to alter the level or deviate improve or renew in any manner they think fit any road in or along which any main or line of pipes of the Undertakers shall be laid and the Undertakers shall on the expiration of fourteen days after receiving notice in writing under the hand of the clerk of the council so to do proceed to alter the position of any such pipes in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed and the council shall repay to the Undertakers the expense reasonably incurred by the Undertakers in effecting any such alteration of the position of any such pipes :
- (5) If in the exercise of the powers of this Order any road is broken up by the Undertakers or any culvert drain pipe

or other property of the council is damaged by the Undertakers the Undertakers shall at their own expense repair such road culvert drain pipe or other property to the reasonable satisfaction of the council and if the same is not so repaired the council may cause the necessary repairs to be done and may charge the reasonable costs thereof against the Undertakers and the same shall be a debt due from the Undertakers to the council:

A.D. 1910.

Highbridge.

(6) If any difference arise between the Undertakers and the council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to any such reference to arbitration:

(7) All the rights or obligations conferred or imposed by this section shall be in addition to and not in substitution for any rights or obligations conferred or imposed by such of the provisions of the Gasworks Clauses Acts 1847 and 1871 with respect to breaking up streets as are incorporated in this Order.

24. In executing the works and exercising the powers by this Order respectively authorised and conferred so far as the same affect main roads and county or main road bridges (in this section the expression "bridge" shall be deemed to include the approaches thereto) of the county of Somerset and sewers drains tunnels and other property vested in or under the jurisdiction of the Somerset County Council (in this section referred to as "the council") the following provisions for the protection of the council shall unless otherwise agreed in writing between the Undertakers and the council have effect (that is to say):—

For protection of Somerset County Council.

(1) All mains pipes conduits and works to be laid in or along any main road or in or upon or across any county or main road bridge shall be laid in such position and at such depth in or at the side thereof as the council in writing under the hand of their surveyor may reasonably direct Provided nevertheless that in the event of the Undertakers renewing or replacing any existing mains or pipes by new mains or new pipes such new mains or new pipes shall wherever practicable be laid in the same position and at the same depth as the existing mains or pipes which may be so renewed or replaced accordingly:

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Highbridge.

- (2) Section 8 of the Gasworks Clauses Act 1847 incorporated with this Order shall be read and have effect as if the period of seven clear days were inserted therein instead of the period of three clear days in the said section mentioned and the notice therein mentioned shall be given to the surveyor of the council:
- (3) The plan required by section 9 of the Gasworks Clauses Act 1847 shall be accompanied in the case of a county or main road bridge by a section of the proposed works and shall be delivered (except in cases of emergency) to the council or their surveyor by the Undertakers not less than in case of a bridge twenty-one days and in all other cases ten days before the Undertakers commence to open or break up any main road or interfere with any county or main road bridge or sewer drain or tunnel or other property of the council for the purpose of executing the works Provided that if the council or their surveyor shall not within one month after the same shall have been submitted to them or him so express their or his approval or disapproval thereof or signify their or his requirements in relation thereto they or he shall be deemed to have approved thereof:
- (4) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the council which consent may be given upon such condition as the council or such surveyor may reasonably determine:
- (5) Nothing in this Order contained shall interfere with the right of the council at any time or times in any manner they may think fit to remove alter rebuild widen or repair any county or main road bridge or the roadway over the same over or near or attached to which any pipes or other works of the Undertakers are carried and in the event of any such removal alteration rebuilding widening or repair as aforesaid being intended by the council the Undertakers shall at their own cost in all things on receiving ten days' notice (or shorter in case of emergency) in writing under the hand of the clerk or surveyor to the council so to do with all convenient speed alter the position of any such pipes or works in such manner and to such extent as such notice may reasonably prescribe and sections 11 and 12 of the Gasworks Clauses Act 1847 shall (*mutatis mutandis*) apply to any delay on the part of the Undertakers in complying with such notice and any additional expense in relation to such removal alteration rebuilding widening

or repair as aforesaid incurred by the council in protecting the pipes or works of the Undertakers or otherwise by reason of the existence of such pipes or works shall be paid to the council by the Undertakers and the council shall not be liable to make any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of any such removal alteration rebuilding widening or repair as aforesaid Provided that during such removal alteration rebuilding widening or repair as aforesaid the council shall at the cost of the Undertakers afford all reasonable facilities for temporarily carrying or supporting such pipes and other works so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such pipes:

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Highbridge.

- (6) All works shall be so executed by the Undertakers as far as possible as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county bridge and the Undertakers shall not open or break up at one time a greater length than one hundred yards of any such road:
- (7) All reasonable expenses incurred by the council by reason of the exercise of any of the powers of this Order in carrying out any works or repairs rendered necessary by the acts or defaults of the Undertakers their contractors officers and servants or workmen and all moneys penalties and forfeitures payable by the Undertakers to the council shall be paid by the Undertakers to the council within twenty-one days after demand in writing:
- (8) The council shall not except in the case of negligence be liable for or in respect of any damage or injury done to any work of the Undertakers by reason of such work being laid at a depth below the surface of any main road insufficient for its protection from injury arising from the use of any steam or other roller not exceeding eighteen tons in weight for the repair of such road or from the passage of the traffic in such road or by reason of the non-repair of any county or main road bridge:
- (9) Any difference at any time which arises between the council and the Undertakers touching this section or anything to be done or not to be done thereunder such difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the

A.D. 1910.
Highbridge.

Institution of Civil Engineers and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to any such arbitration.

Differences
with road
authority or
railway or
other com-
pany.

25. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works or to the facilities to be afforded for the same such difference shall unless otherwise provided by this Order be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Quality of Gas.

Quality of
gas.

26. The prescribed number of candles shall be not less than fourteen.

Testing for Quality.

Testing for
quality.

27.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing-place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within six months from the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure of Gas.

Pressure of
gas.

28.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

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Highbridge.

Testing-place.

29. For the purposes of the Gasworks Clauses Act 1871 the testing-place shall be a testing-place provided by the Undertakers at the gasworks within six months from the commencement of this Order.

Testing-
place.

Price of Gas.

30. The standard price to be charged by the Undertakers for gas supplied by them to private consumers by ordinary meters shall be three shillings and ninepence per thousand cubic feet:

Price of gas
with sliding
scale as to
dividend.

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary share capital as follows:—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

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Charge for
gas supplied
by means of
prepayment
meters.

31.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connexion with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Miscellaneous.

Power to
supply gas
fittings
Fittings not
to be subject
to distress.

32.—(1) The Undertakers may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or rents and charges and make such terms and conditions as may be agreed.

(2) Any fittings now out on hire or let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

Engines &c.
though fixed
to premises
to remain

33.—(1) Subject as herein-after provided all engines motors fittings apparatus and appliances of the Undertakers now out on hire or let by the Undertakers on hire under the provisions of

this Order shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Undertakers Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such engines motors fittings apparatus and appliances are or shall be fixed.

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Highbridge.
property of
Undertakers.

(2) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such engines motors fittings apparatus and appliances as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

34. The Undertakers may but only with the consent in writing of the owner of the soil of such street or road on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply.

Power to lay
pipes in
streets not
dedicated to
public use.

35. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture storage supply utilisation or distribution of gas or the conversion manufacture or utilisation of any product obtainable in or arising from such manufacture or from the materials used therein.

Power to
take licences
for use of
patents.

36. The Undertakers may contract with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the limits of supply for the supply of gas in bulk to them respectively upon such terms and conditions and for such periods not exceeding in any case seven years from the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay down any mains or interfere with any street beyond the limits of supply.

Power to
contract for
sale of gas
in bulk.

37. No penalty shall be incurred by the Undertakers for neglect or refusal to give a supply of gas in accordance with the provisions of this Order to any company body or person who uses or is in the habit of using machinery or apparatus for making and utilising suction gas if and so long as in the opinion of the Undertakers the

As to supply
to users of
suction gas
plant.

A.D. 1910. giving of a supply by them to such company body or person would
Highbridge. interfere with or jeopardise the supply of gas by the Undertakers for
public and private lighting and to consumers not using such machinery
or apparatus as aforesaid.

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

38. In order to enable the Undertakers to ensure a satisfactory
supply of gas to their consumers the following provisions shall have
effect :—

- (1) The Undertakers may specify the size and material of the
pipes with the fittings thereof which are to be laid by the
consumer between the Undertakers' mains and the meter and
(so far as the same are intended to be covered over) on the
consumer's premises :
- (2) The Undertakers may if they think fit make different specifica-
tions for different classes of premises having regard to the
probable maximum consumption of gas thereon at any one
time :
- (3) The specification shall be published once in each of two news-
papers circulating within the limits of supply and a copy
thereof shall be kept exhibited in the office of the Under-
takers :
- (4) Every meter to be used in a new building or a building not
previously supplied with gas or in connexion with a new
or substituted pipe laid by the consumer between the main
and the consumer's meter shall be placed as near as
reasonably practicable to the Undertakers' main but within
the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or
placed notice thereof shall be given to the Undertakers and
the pipe shall not be covered over until after the expiration
of twenty-four hours from the service of such notice on the
Undertakers Any officer of the Undertakers duly appointed
may between nine o'clock in the morning and five o'clock
in the afternoon attend and inspect such pipes (with their
fittings) and meter and if the officer is not permitted to
make the inspection or if the pipes or fittings are not
according to the Undertakers' specification or if the meter
is not placed as required by this section the Undertakers
may refuse to supply gas to the premises until the provisions
of this section have been complied with :
- (6) Any person to whom the Undertakers refuse a supply of gas
under the provisions of this section may appeal to a petty
sessional court against such refusal and the court may after
hearing the parties and considering any questions as to the

reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

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Highbridge.

39. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctua-
tors for gas
engines.

40. Twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Provided that notice of the provisions of this section shall be endorsed upon every demand note for gas rent payable to the Undertakers.

Gas consum-
ers to give
notice to
Undertakers
before re-
moving.

41. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice of dis-
continuance.

42. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Undertakers.

Period of
error in
defective
meters.

43. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by

Power to
refuse to
supply per-

A.D. 1910.

Highbridge.
 sons in debt
 for other
 property.

Power to
 erect &c.
 cottages for
 officers and
 servants.

Exemption
 from penal-
 ties in certain
 cases.

Undertakers
 to pay in-
 terest on
 deposits.

8 Vict. c. 16.
 s. 140 incor-
 porated.

Costs of
 Order.

them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

44. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

45. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

46. Where any money is deposited by any person by way of security with the Undertakers for the payment by them of any moneys which may become due to them from such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

47. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order Provided that for the purpose of such incorporation the expression "the Company" in the said section shall be construed to mean the Undertakers.

48. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULE.

GAS LANDS.

A piece or parcel of land belonging or reputed to belong to and in the occupation of the Undertakers and upon which their existing gasworks are erected situate in the parish of Highbridge North and urban district of Highbridge in the county of Somerset containing 5491 superficial square yards or thereabouts bounded on the south and west by lands and premises belonging or reputed to belong to Messrs. Cox and Company on the north by a public road called or known as Gas Lane Highbridge aforesaid and on the east by the Great Western Railway.

PINNER GAS.

A.D. 1910.

Pinner.

Order empowering the Pinner Gas Company Limited to raise additional capital for the purposes of their gas undertaking.

1. This Order may be cited as the Pinner Gas Order 1910.

Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commencement of Order.

3. The several words terms and expressions to which by the Gas and Water Works Facilities Act 1870 meanings are assigned shall have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.

4. The Pinner Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

5. The limitation prescribed by the Pinner Gas Order 1901 (in this Order referred to as "the Order of 1901") with respect to the amount of the share capital of the Undertakers for the purposes of their gas undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the further new capital") not exceeding fifty thousand pounds including any premiums that may be obtained on the sale of any shares under the provisions of this Order. Provided that the share capital of the Undertakers in respect of their gas undertaking shall not for such purposes exceed in the whole ninety-two thousand eight hundred pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New capital.

6.—(1) All shares or stock forming part of the further new capital shall be issued in accordance with the provisions of this section.

New shares or stock to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine:

Provided as follows:—

(A) Notice of the intended sale shall be given in writing by the Undertakers to the clerk of every urban or rural district council having jurisdiction within the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as

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Pinner.

the case may be and shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

- (B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or the last day for the reception of tenders as the case may be:

- (c) No single lot offered for sale shall comprise more than one hundred pounds nominal value of shares or stock:

- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and which are not sold may be offered at the reserve price to the holders of the ordinary and preference shares or stock of the Undertakers in manner prescribed by a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) When any shares or stock which have been offered for sale in accordance with the foregoing provisions of this Order are not sold they shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors of the Undertakers may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

7. All moneys raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

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Pinner.

Application of premiums arising on sale of shares or stock.

8. Except as expressly provided by the Order of 1901 and the Board of Trade Order dated the 13th day of February 1905 fixing a standard price with a sliding scale as to profits the Undertakers shall not in any year declare or make out of their profits any larger dividends on the further new capital than seven pounds in respect of every one hundred pounds actually paid up of so much of the further new capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of so much of the further new capital as may be issued as preference capital.

Limits of dividend on capital.

9. In case in any year or in any half-year if the Undertakers declare a dividend half-yearly the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates of dividend on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Dividends on different classes of shares or stock to be paid rateably.

10. The Undertakers may borrow on mortgage of their gas undertaking in addition to the sum they are already empowered to borrow any sum of money not exceeding one third of the amount of the further new capital by this Order authorised to be raised and at the time actually raised by the issue of shares or stock including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys so borrowed by the Undertakers in respect of the further new capital.

Limit of borrowing powers.

11. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

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